NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (the "Agreement") is entered into as of January 15, 2025, by and between Cyberdyne Inc., a Delaware corporation ("Disclosing Party"), and Pendant Corp., a Illinois corporation ("Receiving Party").

Section 1. Purpose and Confidential Information

The parties wish to explore a potential business opportunity and may disclose to each other certain confidential, proprietary, and non-public information. The term "Confidential Information" means all information disclosed by the Disclosing Party to the Receiving Party, whether orally, in writing, or by inspection of tangible objects, including but not limited to business plans, financial information, technical data, product specifications, customer lists, marketing strategies, and trade secrets that are marked as confidential or identified as confidential at the time of disclosure.

Section 2. Obligations of Receiving Party

The Receiving Party agrees to maintain the confidentiality of all Confidential Information received from the Disclosing Party and to protect such information using the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. The Receiving Party shall not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party, except to employees, consultants, and advisors who have a legitimate need to know and who are bound by confidentiality obligations substantially similar to those contained herein.

Section 3. Exclusions from Confidential Information

Confidential Information shall not include information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was rightfully possessed by the Receiving Party prior to disclosure as evidenced by written records; (c) is rightfully received by the Receiving Party from a third party without restriction on use or disclosure; or (d) is independently developed by the Receiving Party without use of or reference to the Confidential Information.

Section 4. Permitted Disclosures

The Receiving Party may disclose Confidential Information if required by law, court order, or regulatory authority, provided that the Receiving Party promptly notifies the Disclosing Party in writing and cooperates with the Disclosing Party's efforts to obtain protective orders or other appropriate remedies.

Section 5. Term and Termination

This Agreement shall commence on the date first written above and shall continue for a period of two (2) years, unless earlier terminated by either party. Either party may terminate this Agreement upon forty-five (45) days written notice to the other party. Upon termination, the Receiving Party shall cease using the Confidential Information and shall, at the Disclosing Party's election, return or destroy all Confidential Information in its possession.

Section 6. Consideration and Payment

In consideration for the Receiving Party's agreement to receive and maintain the confidentiality of the Disclosing Party's Confidential Information, the Receiving Party shall pay the Disclosing Party a fee of thirty thousand dollars ($30,000), payable within thirty (30) days of execution of this Agreement. This fee is non-refundable except in the event of material breach by the Disclosing Party.

Section 7. No License or Obligation

Disclosure of Confidential Information does not constitute a grant of any license or rights to intellectual property. Neither party is obligated to enter into any further business relationship or transaction as a result of this Agreement.

Section 8. Return of Information

Upon termination or request by the Disclosing Party, the Receiving Party shall return or certify destruction of all Confidential Information within thirty (30) days.

Section 9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois, without regard to conflicts of law principles.

Section 10. Entire Agreement

This Agreement constitutes the entire agreement between the parties concerning the subject matter and supersedes all prior negotiations, understandings, and agreements, whether written or oral.